

25NNCV01089 25NNCV01089

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV01089 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Sanctions

Hearing Date: 8/28/26

CASE NO.: 25NNCV01089

CASE NAME: Jane Doe v. Glendale

Adventist Medical Center, et al.

Moving Party: Plaintiff Jane Doe

Responding Party: Defendant Glendale

Adventist Medical Center

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested AND ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is medical malpractice case. On February 14, 2025, Plaintiff Jane Doe (Plaintiff) filed an initial Complaint against defendant Glendale Adventist Medical Center (Defendant) Ryun Wayne Harper, M.D., and Andy Wai Ming Wong, M.D. arising out of medical care and treatment Plaintiff received at Glendale Adventist Medical Center. On October 22, 2025, Plaintiff filed a Second Amended Complaint (SAC).

On April 2, 2026, Plaintiff filed a motion for order to show cause re: sanctions against Defendant's counsel of record, Kjar McKenna & Stockalper LLP and Michael D. Gozalez. (Res ID: 6023 (Mot. 1).) On April 3, 2026, Plaintiff filed a second motion for sanctions against Defendant and their counsel of record. (Res ID: 2541 (Mot. 2).)

On August 17, 2026, Defendant filed an opposition to both motions.

LEGAL

STANDARD

Under Code of Civil Procedure section 128.5, "[a] trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. (Code of Civil Procedure § 128.5(a).) "Frivolous" has been described as actions that are "totally and completely without merit or for the sole purpose of harassing an opposing party. A motion for sanctions under section 128.5 is to be "made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay." (Code of Civil Procedure § 128.5(f)(1)(A).)

DISCUSSION

Plaintiff seeks

imposition of sanctions against Defendant and their counsel for repeated improper service, bad faith tactics, and violation of the California Safe at Home program (SAH) protocols. (Mot. 1, p. 5; Mot. 2, p. 2.)

Plaintiff argues

that Defendant effectuated improper e-service twice in serving the Case Management Statement and an opposition to an ex parte application via email. (Mot. 1, p. 4.) Plaintiff argues that this form of casual electronic communication violates SAH statutes including Government Code sections 6205-6207. (Ibid.) Plaintiff makes similar allegations in Mot. 2, alleging that all service attempts are void due to violations of Safe at Home. (Mot. 2, p. 3.) Further, Plaintiff argues that Defendant "has not verified enrollment or receipt" with the Secretary of State, and delivery to the program is not delivery to Plaintiff. (Ibid.) Lastly, Plaintiff adds in a request for summary adjudication. (Mot. 1, pp. 5-6.)

In opposition,

Defendant argues that Plaintiff's motions are duplicative and lack merit. (Opp., p. 3.) Defendant argues that Plaintiff misunderstands the law, and maintains that they have complied with the requirements set forth in SAH by serving the address designated by the Secretary of State. (Opp., p. 4.) Defendant concedes that they also provided service via email in order to provide the information to Plaintiff quickly. (Ibid.) However, Defendant argues that Government Code sections 6205 through 6207 (SAH statutes) prohibit the knowing and intentional publication of a program participant's residential address, residential telephone number, or other identifying information, which Defendant maintains they did not do. (Ibid.) Defendant argues that their conduct has not been frivolous and they have not engaged in any bad faith tactics justifying sanctions. (Opp., p. 6.) Lastly, Defendant argues that Plaintiff's request for summary adjudication is unfounded. (Opp., p. 7.)

A [Safe at Home Address Confidentiality] program participant may request that state and local agencies use the address designated by the Secretary of State as his or her address. (Gov. Code, § 6207(a).) The Secretary of State will then forward the program participant's mail to the participant's residential address, such that the program participant's residential address and personal information remains confidential. (See CCR § 22101.2.) Here, Plaintiff provides no evidence demonstrating that Defendant has violated SAH procedures or failed

to serve the address provided by the Secretary of State. Further, delivery to the provided address complies with the requirement that pro per litigants be served by non-electronic means unless the self-represented party or other person affirmatively agrees to electronic service. (Cal. Rules of Court, rule 2.253(b)(3); Code of Civil Proc., § 1010.6(c).) Thus, Plaintiff has not provided evidence of bad faith litigation tactics or frivolous conduct.

Additionally, the Court finds Plaintiff's request for summary adjudication unsound. If Plaintiff seeks summary adjudication or summary judgment, Plaintiff must comply with procedural and substantive requirements in filing that motion. (Code of Civil Procedure § 437c.)

CONCLUSION
AND ORDER

Plaintiff Jane Doe's motions for sanctions are DENIED.

MOVING PARTY is to give notice.